

MEMORANDUM

Subj: BRAND NAME JUSTIFICATION TO ACQUIRE TDK-LAMBDA HARDWARE

1. Identification of the agency and the contracting activity, and specific identification of the document as a “Brand Name Justification.”

This is a brand name justification. Contracting activity is the Naval Sea Systems Command, Naval Surface Warfare Center, Panama City Division (NSWC PCD), 110 Vernon Avenue, Panama City, FL 32407-7001.

2. Nature and/or description of the action being approved.

This action will award a firm fixed price purchase order to the lowest priced offered that provides the specific brand name product required. This procurement is required for hyperbaric test equipment, facilities atmospheric control monitoring, life support and physiological systems.

3. A description of the supplies or services required to meet the agency’s needs. The contract effort is to acquire the following:

Part Number	Description	Qty
TDK-Lambda Americas Inc. GENHPLUS30-50	GENESYS+ DC Power Supply: 1500W, 30V, 50A, 1U, Half Rack AC Input: 85-265VAC, single phase universal AC input.	4
TDK-Lambda Americas Inc. GENHPLUS-RM	GH/RM GENESYS+ Rack Mount Kit (Holds two units - includes Blank Panel)	2
Shipping	Shipping to: Navy Experimental Diving Unit 321 Bullfinch Road Panama City, FL 32407	1

This acquisition will be conducted using simplified acquisition procedures. The Government’s minimum needs have been verified by the certifying technical and requirements personnel. This memo does not authorize acquisition for other requirements. This acquisition will be conducted using simplified acquisition procedures with a total dollar value above micro-purchase levels, but not exceeding the simplified acquisition threshold of \$350,000.00.

4. Identification of the justification rationale (see FAR 8.405-6(a) and (b)) and, if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

10 U.S.C. 2304(c)(1) - Only one responsible source and no other supplies or services will satisfy agency requirements, FAR 6.302-1(c).

The TDK-Lambda Americas, Inc. equipment is comprised of commercial hardware, integrated and configured specifically for use with current NEDU hardware and software systems. The hardware specified provide the means to integrate with already in place systems and software for NEDU N31 hyperbaric chamber systems. These components provide the power supplies required to interface with laboratory data acquisition systems. The TDK-Lambda power supplies requested are the only equipment compatible with the current installed hardware and software control systems. In summary, using alternate equipment would prove costly in time and dollars to the government and to the mission. Use of another system may change or introduce new parameters that may be harmful to all diving systems tested and maintained at NEDU. Therefore, it is imperative that this particular brand of equipment is purchased.

As such, the Government does not expect significant savings through competition and does expects significant and unacceptable delays that will negatively impact this requirement. Therefore, it is in the Governments' best interest to acquire the TDK-Lambda Americas, Inc. brand.

5. A determination by the ordering activity contracting officer that the order represents the best value consistent with FAR 8.404(d).

The Contracting Officer has determined that the order represents the best value and results in the lowest overall cost alternative (considering price, special features, administrative costs, etc.) to meet the Government's needs.

6. A description of the market research conducted among schedule holders and the results or a statement of the reason market research was not conducted.

For the reasons specified in paragraph 4 above, TDK-Lambda Americas, Inc. is the only brand that can meet the Government's needs.

7. Any other facts supporting the justification.

None.

8. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

As stated in paragraph 4 above, TDK-Lambda Americas, Inc. is the only brand that can meet the Government's needs.